

HOUSE No. 4265

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, July 14, 2025.

The committee on Ways and Means, to whom was referred the Senate Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (Senate, No. 2540), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 4265 [Total Appropriation: \$536,832,564.00].

For the committee,

AARON MICHLEWITZ.

HOUSE No. 4265

Text of an amendment, recommended by the committee on Ways and Means, to the Senate Bill making appropriations for the fiscal year 2025 to provide for supplementing certain existing appropriations and for certain other activities and projects (Senate, No. 2540). July 14, 2025.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

By striking out all after the enacting clause and inserting in place thereof the following:—

SECTION 1. To provide for supplementing certain items in the general appropriation act and other appropriation acts for fiscal year 2025, the sums set forth in section 2 are hereby appropriated from the General Fund unless specifically designated otherwise in this act or in those appropriation acts, for the several purposes and subject to the conditions specified in this act or in those appropriation acts, and subject to the laws regulating the disbursement of public funds for the fiscal year ending June 30, 2025. These sums shall be in addition to any amounts previously appropriated and made available for the purposes of those items. These sums shall be made available through the fiscal year ending June 30, 2025.

SECTION 2.

EXECUTIVE OFFICE OF VETERANS' SERVICES

1410-0400	Veterans' Benefits	\$5,800,000
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OFFICE OF THE COMPTROLLER

1599-3384	Settlements and Judgments.....	\$28,917,460
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14		EXECUTIVE OFFICE OF EDUCATION	
15		<i>Department of Early Education and Care</i>	
16	3000-3060	DCF and DTA Related Child Care.....	\$95,554,342
17		Education and Transportation Fund.....	100%
18	3000-4060	Income-Eligible Child Care.....	\$94,015,214
19		Education and Transportation Fund.....	100%
20		EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES	
21	1595-1068	Medical Assistance Trust Fund.....	\$134,498,420
22		<i>Department of Transitional Assistance</i>	
23	4400-1004	Healthy Incentives Program.....	\$7,500,000
24	4405-2000	State Supplement to the Social Security Income program.....	\$3,000,000
25	4408-1000	Emergency Aid to Elderly, Disabled and Children.....	\$1,000,000
26		<i>Department of Public Health</i>	
27	4513-1012	Women Infants and Children Program Manufacturer Rebates.....	\$400,000
28	4590-0912	Western Massachusetts Hospital Retained Revenue.....	\$1,200,000
29		EXECUTIVE OFFICE OF HOUSING AND LIVABLE COMMUNITIES	
30		<i>Office of the Secretary of Housing and Livable Communities</i>	

31 7004-9316 Residential Assistance for Families in Transition..... \$42,910,506

32 EXECUTIVE OFFICE OF PUBLIC SAFETY AND SECURITY

33 *State Police*

34 8100-0006 Private Detail Retained Revenue..... \$7,750,000

35 8100-1004 State Police Crime Laboratory..... \$4,193,083

36 *Military Division*

37 8700-0001 Military Division.....\$593,539

38 EXECUTIVE OFFICE OF AGING AND INDEPENDENCE

39 *Office of the Secretary*

40 9110-1630 Home Care Services.....\$60,000,000

41 SECTION 2A. To provide for certain unanticipated obligations of the commonwealth, to
42 provide for an alteration of purpose for current appropriations, and to meet certain requirements
43 of law, the sums set forth in this section are hereby appropriated from the General Fund unless
44 specifically designated otherwise in this section, for the several purposes and subject to the
45 conditions specified in this section, and subject to the laws regulating the disbursement of public
46 funds for the fiscal year ending June 30, 2025. Except as otherwise stated, these sums shall be
47 made available through the fiscal year ending June 30, 2026.

48 EXECUTIVE OFFICE FOR ADMINISTRATION AND FINANCE

49 *Reserves*

50 1599-1776 For a reserve to support celebrations of the United States' semiquincentennial
 51 anniversary; provided, that funds may be made available for statewide initiatives to promote the
 52 anniversary and for grants to municipalities for public safety, transportation and logistical costs
 53 associated with anniversary celebrations; and provided further, that at the direction of the
 54 secretary of administration and finance, funds may be transferred from this item to the
 55 Massachusetts Tourism Trust Fund established in section 13T of chapter 23A of the General
 56 Laws.....\$15,000,000

 57 1599-1777 For a reserve to support capital improvements to the Edward A. LeLacheur park
 58 at the University of Massachusetts Lowell.....\$6,000,000

 59 1599-1778 For a reserve to support the creation of the Brooke House in Mattapan by 2Life
 60 Development Inc.; provided, that the Brooke House shall create and maintain not less than 127
 61 units of senior housing; provided further, that the housing shall be reserved for seniors with
 62 incomes of not more than 60 per cent of the area median income; provided further, that the
 63 Brooke House shall include space for the Shattuck Child Care Center; and provided further, that
 64 the Brooke House shall include space for a community health care center that shall provide
 65 services to the broader community.....\$2,000,000

 66 1599-1779 For a transfer to the Fair Housing Fund established in section 2JJJJJ of chapter
 67 29 of the General Laws.....\$1,000,000

68 EXECUTIVE OFFICE OF HEALTH AND HUMAN SERVICES

69 *Department of Transitional Assistance*

70 4400-1033 For the costs associated with the transition to chipped electronic benefits transfer
71 cards by the department of transitional assistance; provided, that at the direction of the
72 commissioner of transitional assistance, funds may be transferred from this item to item 4400-
73 1000 of section 2 of chapter 140 of the acts of 2024; and provided further, that funds
74 appropriated in this item shall be made not revert but shall be made available for these purposes
75 through the fiscal year ending June 30, 2027..... \$15,500,000

76 *Department of Public Health*

77 4510-0794 For competitive grants to reimburse municipalities for extraordinary emergency
78 medical service costs; provided, that funds in this item shall be administered by the department
79 of public health and shall be reimbursed based on eligibility criteria established by the
80 department.....\$10,000,000

81 SECTION 3. Section 40 of chapter 6 of the General Laws, as appearing in the 2022
82 Official Edition, is hereby amended by striking out subsection (d) and inserting in place thereof
83 the following subsection:-

84 (d) The boards of trustees for each state-operated veterans' home may receive donations
85 to benefit the homes. The state treasurer shall receive, deposit and invest all donations made to
86 the state-operated veterans' homes. The trustees may expend the donated funds for the direct
87 benefit of the veterans who reside in the state-operated veterans' homes, acting as fiduciaries
88 with the care, skill and diligence that a prudent person would use.

89 SECTION 4. Section 61 of chapter 7 of the General Laws, as so appearing, is hereby
90 amended by striking out, in line 132, the words "March 15" and inserting in place thereof the
91 following words:- June 1.

SECTION 5. Chapter 10 of the General Laws is hereby amended by inserting after section 35M the following section:-

Section 35M1/2. (a) There shall be established upon the books of the commonwealth a separate fund to be known as the Medical Peer Support Trust Fund to be used, without prior appropriation, by the physician health program authorized by the board of registration in medicine pursuant to section 5 of chapter 112 and 243 CMR 2.07(23)(b) as a diversionary program.

(b) The Medical Peer Support Trust Fund shall be financed by a surcharge of not more than \$50 on each full license renewal or issuance of a new full license to be collected by the board of registration in medicine for every physician licensed under section 2 of said chapter 112 in addition to other license fees. All money deposited into the fund shall be expended exclusively by the physician health program pursuant to said section 5 of said chapter 112 and said 243 CMR 2.07(23)(b) for its operations and administration and shall not be subject to appropriation by the general court.

SECTION 6. Section 11M of chapter 12 of the General Laws, as so appearing, is hereby amended by striking out, in lines 52 to 54, inclusive, the words “; provided, however, that the commission shall not approve such a request if the request would exceed an annual reimbursement of \$3,000,000”.

SECTION 7. Chapter 29 of the General Laws is hereby amended by inserting after section 2KKKKKK the following section:-

Section 2LLLLLL. (a) There shall be established and set up on the books of the commonwealth a separate, non-budgeted special revenue fund known as the Office of the

Inspector General Recovery Fund, which shall be administered by the office of the inspector general. The fund shall be credited with any monies payable to the inspector general from civil recoveries, settlement funds or recoupment of administrative and investigatory costs and may earn and be credited interest.

(b) Amounts credited to the fund shall be expended, without further appropriation, for the office of the inspector general's operational, administrative and investigatory purposes.

(c) The unexpended balance in the fund at the end of a fiscal year shall remain available for expenditure in subsequent fiscal years. No expenditure made from the fund shall cause the fund to be in deficit at any point.

SECTION 8. The third paragraph of section 33 of chapter 31 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the word "employment", in line 52, the following words:- ; provided, however, that the length of service of a person appointed through an original appointment to a civil service position of municipal police officer or fire officer from a local public safety register pursuant to section 59A shall be calculated from and, in all instances shall remain, the date of such original appointment from the register and shall not be subject to adjustment at any time for prior employment by the commonwealth or another city or town.

SECTION 9. The second paragraph of section 59 of said chapter 31, as amended by section 145 of chapter 238 of the acts of 2024, is hereby further amended by striking out the words "three years after certification" and inserting in place thereof the following words:- 3 years after appointment and performance of the job duties.

SECTION 10. Subsection (a) of section 59A of said chapter 31, inserted by section 147 of said chapter 238, is hereby amended by striking out the words “police and firefighter” and inserting in place thereof the following words:- police, MBTA police and municipal firefighter.

SECTION 11. Said section 59A of said chapter 31, as inserted by said section 147 of said chapter 238, is hereby further amended by adding the following subsection:-

(h) Notwithstanding any prior appointments, for any person who receives an appointment pursuant to this section, the local public safety register appointment date shall be considered the person’s seniority date for all purposes under this chapter.

SECTION 12. Section 75 of said chapter 31, as amended by section 161 of said chapter 238, is hereby further amended by adding the following sentence:- Nothing in this section shall be construed to permit civil service employees to furnish information to, or cooperate with, law enforcement authorities in contravention of section 11I½ of chapter 12.

SECTION 13. Section 1B of chapter 69 of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after the thirteenth paragraph the following paragraph:-

The board shall ensure meaningful communication between school personnel and parents and legal guardians of all students receiving educational services pursuant to this chapter, chapter 71, 71A, 71B or 74. The board shall ensure that interpreters and translators used in public school settings are bilingual, have knowledge in both languages of any specialized terms or concepts to be used in the communication at issue and that interpreters are trained on the role of an interpreter and translator, the ethics of interpreting and translating and the need to maintain confidentiality.

SECTION 14. Section 4 of chapter 71A of the General Laws, as so appearing, is hereby amended by inserting after the word “component.”, in line 13, the following sentence:- Each district shall, within a reasonable amount of time, ensure that any academic deficits for a student that are a result of focusing on English language acquisition are addressed.

SECTION 15. Section 5 of said chapter 71A, as so appearing, is hereby amended by adding the following subsection:-

(c) School districts shall not recommend that parents or legal guardians decline all or some services within an English learner program for any reason, including, but not limited to, facilitating scheduling of special education services or other scheduling reasons.

SECTION 16. Section 3 of chapter 71B of the General Laws, as so appearing, is hereby amended by inserting after the word “development.”, in line 145, the following 4 sentences:-
When conducting an evaluation for a child who is an English learner, as defined in section 2 of chapter 71A, school committees shall consider the English language proficiency of the student. Assessments and other evaluation materials used to evaluate the child shall be provided and administered in the child’s primary language and in the form most likely to yield accurate information on what the child knows and can do academically, developmentally and functionally. The Individualized Education Program team convened for an English learner shall include 1 or more participants with the following: (i) a requisite knowledge of the student’s language needs; (ii) training and expertise in second language acquisition; and (iii) an understanding of how to differentiate between the student’s limited English proficiency and the student’s disability. Whenever an evaluation indicates that a child who is an English learner is also a school age child with a disability, the Individualized Education Program team shall ensure

that the Individualized Education Program includes services to meet both the English language and special education needs of the child.

SECTION 17. The ninth paragraph of said section 3 of said chapter 71B, as so appearing, is hereby amended by adding the following sentence:- The department shall promulgate regulations to continue in effect and enforce the provisions of 20 U.S.C. 1415(k) in effect on January 1, 2025.

SECTION 18. Section 5 of chapter 76 of the General Laws, as so appearing, is hereby amended by inserting after the word “origin”, in line 11, the following words:- , immigration or citizenship status, disability.

SECTION 19. Section 7I of chapter 90 of the General Laws, as so appearing in the 2022 Official Edition, is hereby amended by inserting after the word “vehicles”, in line 8, the following words:- and vehicles operated by the Massachusetts emergency management agency.

SECTION 20. Section 1 of chapter 90F of the General Laws, as so appearing, is hereby amended by striking out, in line 65, the words “(49 App. USC 1801 et seq.)” and inserting in place thereof the following words:- (49 U.S.C. 5101 et seq.).

SECTION 21. Section 4 of said chapter 90F, as so appearing, is hereby amended by striking out, in line 17, the words “of from \$2,750 to \$11,000 inclusive” and inserting in place thereof the following words:- as required under subsection (b)(2) of Appendix B of 49 C.F.R. 386.

SECTION 22. Said section 4 of said chapter 90F, as so appearing, is hereby further amended by striking out, in lines 22 and 23, the words “of not more than \$10,000” and inserting

in place thereof the following words:- as required under subsection (b)(3) of Appendix B of 49 C.F.R. 386.

SECTION 23. Section 9 of said chapter 90F, as amended by chapter 313 of the acts of 2024, is hereby further amended by striking out paragraph (D) and inserting in place thereof the following paragraph:-

(D) Any person shall be disqualified from operating a commercial motor vehicle for life for: (i) using a commercial motor vehicle or a motor vehicle in the commission of any felony involving the manufacture, distribution or dispensing of a controlled substance or possession with intent to manufacture, distribute or dispense a controlled substance; or (ii) using a commercial motor vehicle in the commission of any felony involving trafficking in persons or organs as prohibited by sections 50, 51 or 53 of chapter 265 or any felony involving an act or practice of severe forms of trafficking in persons, as defined in 22 U.S.C. 7102(11).

SECTION 24. Subparagraph (3) of paragraph (E½) of said section 9 of said chapter 90F, as appearing in the 2022 Official Edition, is hereby further amended by striking out, in lines 66 and 67, the words “of not less than \$1,100 and not more than \$2,750” and inserting in place thereof the following words:- as required under subsection (b)(1) of Appendix B of 49 C.F.R. 386.

SECTION 25. Subsection (c) of section 34E of chapter 92 of the General Laws, as so appearing, is hereby amended by striking out, in lines 35 to 45, inclusive, the words “1 member to be appointed by a majority vote of the senator for the Second Suffolk and Middlesex district, the senator for the Middlesex and Suffolk district, the representative for the Seventeenth Suffolk district and the representative for the Eighteenth Suffolk district, who shall serve as chair; 2

members to be appointed by the senator for the Second Suffolk and Middlesex district; 2 members to be appointed by the senator for the Middlesex and Suffolk district; 2 members to be appointed by the representative for the Seventeenth Suffolk district; and 2 members to be appointed by the representative for the Eighteenth Suffolk district” and inserting in place thereof the following words:- 3 members to be appointed by the senator for the Suffolk and Middlesex district; 3 members to be appointed by the representative for the Seventeenth Suffolk district; and 3 members to be appointed by the representative for the Eighteenth Suffolk district.

SECTION 26. Chapter 111 of the General Laws is hereby amended by adding the following section:-

Section 249. (a) For the purposes of this section, the definitions in section 1 of chapter 94C shall apply unless the context clearly requires otherwise.

(b) At the commissioner’s discretion, a pharmacy operated by the department may distribute controlled substances to health care providers and entities legally authorized to administer, possess, distribute, deliver or dispense controlled substances; provided, that such controlled substances shall be: (i) related to the provision of reproductive health care services, as defined in section 111I/2 of chapter 12; or (ii) used to ensure access to controlled substances needed to provide treatment in the event of a public health emergency declared pursuant to section 2A of chapter 17.

(c) The department may exercise the authority granted in this section for the benefit of any person, whether or not the person is under the custody, care or supervision of an agency of the commonwealth.

(d) The department shall exercise the authority granted in this section in accordance with applicable law, including, but not limited to, applicable controlled substances registration requirements; provided, however, that the department shall be exempt from obtaining a pharmacy license in accordance with section 39 of chapter 112.

SECTION 27. Chapter 118E of the General Laws is hereby amended by striking out section 6 and inserting in place thereof the following section:-

Section 6. (a) There shall be a MassHealth program advisory committee to advise the executive office on matters of concern related to policy development and matters related to effective program administration. The assistant secretary for MassHealth or their designee shall select members for the advisory committee on a rotating and continuous basis in such numbers and for such terms as the executive office deems appropriate.

(b) The MassHealth program advisory committee shall include at a minimum: (i) 1 member of the MassHealth member advisory committee; (ii) 1 member of a state or local consumer group or other community-based organization that represents the interests of, or provides direct service to, MassHealth beneficiaries; (iii) 1 clinical provider or administrator who is familiar with the health and social needs of MassHealth beneficiaries and with the resources available and required for their care, including, but not limited to, providers or administrators of primary care, specialty care and long-term care; (iv) as applicable, 1 member of a Medicaid-participating managed care entity, including, but not limited to, managed care organizations, accountable care partnership plans, primary care accountable care organizations, one care plans, senior care options plans, the behavioral health vendor or the primary care clinician plan; and (v)

1 member of any other state agency that serves MassHealth beneficiaries, who shall serve as an ex officio, non-voting member.

(c) The executive office shall provide the committee with such staff and technical assistance as necessary to enable the committee to make effective recommendations and such financial arrangements as necessary to make possible the participation of recipient members.

(d) Annually, not later than October 1, the office of Medicaid shall report to the joint committee on health care financing and the house and senate committees on ways and means on the activities of the MassHealth program advisory committee in the previous fiscal year. The report shall include, but shall not be limited to, the names and titles of committee members, dates of committee meetings, agendas and minutes or notes from such meetings and any correspondence, memorandum, recommendations or other product of the committee's work. MassHealth member advisory committee members shall have the option to omit their names from the report.

SECTION 28. Said chapter 118E is hereby further amended by striking out section 9F, added by section 117 of chapter 224 of the acts of 2012, and inserting in place thereof the following section:-

Section 9F. (a) As used in this section, the following words shall, unless the context clearly requires otherwise, have the following meanings:

"Dual eligible", or "dually eligible person", any person age 21 or older and under age 65 at the time of enrollment in a dual eligible managed care organization who is enrolled in both Medicare and MassHealth.

“Dual eligible managed care organization”, a comprehensive network of medical, health care and long-term services and supports providers that integrates all components of care, either directly or through subcontracts, and has been contracted with by the executive office to provide services to dually eligible individuals under this section.

(b) The secretary of health and human services may establish, subject to appropriation, all required federal approvals and agreements and the availability of federal financial participation, a health care program for dual eligible individuals, aged 21 to 64 at the time of enrollment, who are dually eligible for benefits under MassHealth Standard or CommonHealth and Medicare under Title XVIII of the Social Security Act and do not have any additional comprehensive health coverage. Under the program, the executive office may contract to provide integrated, comprehensive Medicaid and Medicare services, including medical, behavioral health and long-term support services for a capitated payment.

(c) Notwithstanding any general or special law to the contrary, the secretary of health and human services may review a request for financial solvency certification by a care delivery organization based in the commonwealth applying to serve as a Medicare plan caring for residents who are dually eligible for Medicare and Medicaid. Upon determination that appropriate financial standards, which may be the standards already in place for organizations with contracts pursuant to this section, have been met, the secretary of health and human services shall so certify to the centers for Medicare and Medicaid services. The secretary of health and human services may require the requesting organization to pay a reasonable certification fee.

(d) Members of the MassHealth managed care program integrating care for dually eligible persons shall be provided an independent community care coordinator by the dual

eligible managed care organization, who shall be a participant in the member's care team. The community care coordinator shall assist in the development of a long-term support and services care plan. The community care coordinator shall:

(i) participate in initial and ongoing assessments of the health and functional status of the member, including determining appropriateness for long-term care support and services, either in the form of institutional or community-based care plans and related service packages necessary to improve or maintain enrollee health and functional status;

(ii) arrange and, with the agreement of the member and the care team, coordinate appropriate institutional and community long-term supports and services, including assistance with the activities of daily living and instrumental activities of daily living, housing, home-delivered meals, transportation and, under specific conditions or circumstances established by the dual eligible managed care organization, authorize a range and amount of community-based services; and

(iii) monitor the appropriate provision and functional outcomes of community long-term care services, according to the service plan as deemed appropriate by the member and the care team and track member satisfaction and the appropriate provision and functional outcomes of community long-term care services, according to the service plan as deemed appropriate by the member and the care team.

(e) The dual eligible managed care organization shall not have a direct or indirect financial ownership interest in an entity that serves as an independent care coordinator. Providers of institutional or community based long-term services and supports on a compensated basis shall not function as an independent care coordinator; provided, however, that the secretary may

grant a waiver of this restriction upon a finding that public necessity and convenience require such a waiver. For the purposes of this section, an organization compensated to provide only evaluation, assessment, coordination, skills training, peer support and fiscal intermediary services shall not be considered a provider of long term services and supports.

SECTION 29. Section 10H1/2 of said chapter 118E, inserted by section 2 of chapter 388 of the acts of 2024, is hereby amended by striking out the second paragraph and inserting in place thereof the following paragraph:-

The division and its contracted health insurers, health plans, health maintenance organizations, behavioral health management firms and third-party administrators under contract to a Medicaid managed care organization or primary care clinician plan shall provide coverage for the treatment of Down syndrome through medically necessary speech therapy, occupational therapy, physical therapy and, for individuals under the age of 21, applied behavior analysis services.

SECTION 30. Said chapter 118E is hereby further amended by adding the following section:-

Section 87. Notwithstanding any general or special law to the contrary, the executive office may directly pay other state agencies, including county correctional facilities and department of correction facilities operated by such state agencies, for any claims related to Medicaid, under the provisions of Title XIX of the Social Security Act, the children's health insurance program, under the provisions of Title XXI of the Social Security Act, the health safety net, under the provisions of sections 64 through 69, the children's medical security plan, under the provisions of section 10F, and other similar healthcare programs; provided, that such

state agencies meet all applicable conditions of participation in these programs, as determined by the executive office in its sole discretion.

SECTION 31. Section 131M of chapter 140 of the General Laws, as amended by section 71 of chapter 135 of the acts of 2024, is hereby further amended by striking out subsection (e) and inserting in place thereof the following subsection:-

(e) This section shall not apply to transfer or possession by: (i) a qualified law enforcement officer or a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended; (ii) a law enforcement officer as defined in section 1 of chapter 6E; (iii) a federal, state or local law enforcement agency; or (iv) a federally licensed manufacturer solely for sale or transfer in another state or for export.

SECTION 32. Section 10 of chapter 269 of the General Laws, as amended by section 122 of said chapter 135 is hereby further amended by striking out the words “or a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended” and inserting in place thereof the following words:- , a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended or a law enforcement officer as defined in section 1 of chapter 6E.

SECTION 33. Subsection (k) of said section 10 of said chapter 269, as inserted by section 124 of said chapter 135, is hereby amended by striking out paragraph (5) and inserting in its place thereof the following paragraph:-

(5) This subsection shall not apply to a law enforcement officer as defined in section 1 of chapter 6E a qualified law enforcement officer or a qualified retired law enforcement officer, as defined in the Law Enforcement Officers Safety Act of 2004, 18 U.S.C. sections 926B and 926C, respectively, as amended or to a security guard employed at the prohibited area while at the location of their employment and during the course of their employment. Nothing in this paragraph shall limit the authority of any municipality, county or department, division, commission, board, agency or court of the commonwealth to adopt policies further restricting the possession of firearms in areas under their control.

SECTION 34. Item 0910-0210 of section 2 of chapter 140 of the acts of 2024 is hereby amended by inserting after the word “system” the following words:- ; provided further, that notwithstanding any general or special law to the contrary, funds may be collected in the prior fiscal year for service programs or activities delivered during the next fiscal year; and provided further, that any unspent balance at the close of the current fiscal year up to the ceiling shall remain in the account and may be expended for the item in the following fiscal year.

SECTION 35. Item 4405-2000 of said section 2 of said chapter 140 is hereby amended by striking out the words “provided further, that rates for residential care facilities and rest homes effective July 1, 2024, established under section 13D of chapter 118E of the General Laws, shall cumulatively total not less than rates effective January 1, 2024” and inserting in place thereof the following words:- provided further, that rates for residential care facilities and rest homes effective July 1, 2024, established under section 13D of chapter 118E of the General Laws, shall cumulatively total not less than \$3,000,000 more than rates effective January 1, 2024.

394 SECTION 36. Item 4408-1000 of said section 2 of said chapter 140 is hereby amended
395 by striking out the words “provided further, that rates for residential care facilities and rest
396 homes effective July 1, 2024, established under section 13D of chapter 118E of the General
397 Laws, shall cumulatively total not less than rates effective January 1, 2024” and inserting in
398 place thereof the following words:- provided further, that rates for residential care facilities and
399 rest homes effective July 1, 2024, established under section 13D of chapter 118E of the General
400 Laws, shall cumulatively total not less than \$1,000,000 more than rates effective January 1,
401 2024.

402 SECTION 37. Item 4513-1012 of said section 2 of said chapter 140 is hereby amended
403 by striking out the figure “\$27,400,000”, each time it appears, and inserting in place thereof, in
404 each instance, the following figure:- \$27,800,000.

405 SECTION 38. Item 4590-0912 of said section 2 of said chapter 140 is hereby amended
406 by striking out the figure “\$27,995,640”, each time it appears, and inserting in place thereof, in
407 each instance, the following figure:- \$29,195,640.

408 SECTION 39. Item 8100-0006 of said section 2 of said chapter 140 is hereby amended
409 by striking out the figure “\$37,250,000”, each time it appears, and inserting in place thereof, in
410 each instance, the following figure:- \$45,000,000.

411 SECTION 40. Item 9110-1630 of said section 2 of said chapter 140 is hereby amended
412 by inserting after the word “placements” the following words:- ; and provided further, that the
413 secretary of the executive office of aging and independence may transfer funds between items
414 9110-0600, 9110-1630 and 9110-1633.

SECTION 41. Item 1595-1068 of section 2E of said chapter 140, as amended by section 127 of chapter 248 of the acts of 2024, is hereby further amended by striking out the figure “\$444,250,000” and inserting in place thereof the following figure:- \$539,980,000.

SECTION 42. Said item 1595-1068 of said section 2E of said chapter 140, as amended by section 128 of said chapter 248, is hereby further amended by striking out the figure “\$837,827,000” and inserting in place thereof the following figure:- \$972,235,420.

SECTION 43. Subsection (d) of section 303 of chapter 238 of the acts of 2024 is hereby amended by striking out the figure “2025” and inserting in place thereof the following figure:- 2026.

SECTION 44. Subsection (b) of section 98 of chapter 239 of the acts of 2024 is hereby amended by striking out the words “The schedule shall ensure that the distribution companies enter into cost-effective long-term contracts for energy storage systems equal to approximately 5,000 megawatts not later than July 31, 2030, of which: (i) approximately 1,500 megawatts of mid-duration storage shall be procured by July 31, 2025, and shall be for environmental attributes only; (ii) approximately 1,000 megawatts of mid-duration storage shall be procured by July 31, 2026; (iii) approximately 1,000 megawatts of mid-duration storage shall be procured by July 31, 2027; and (iv) all remaining energy storage systems capacity shall be procured by July 31, 2030. Each procurement shall consider inclusion of environmental attributes, energy services or a combination of both; provided, however, that the procurement of 1,500 megawatts of mid-duration storage by July 31, 2025 shall be for environmental attributes only.”.

SECTION 45. Item 3000-1142 of section 2A of chapter 248 of the acts of 2024 is hereby amended by striking out the word “between” and inserting in place thereof the following words:- from this item to.

SECTION 46. Chapter 390 of the acts of 2024 is hereby amended by striking out the words “public way within 3 miles of the vessel’s waterfront location of origin in the town of Barnstable and which may pass over the roadways of the town of Yarmouth; provided, however, that said vessel shall be trucked by a professional licensed boat hauler” and inserting in place thereof the following words:- locally owned or controlled public way within 3 miles of the vessel’s waterfront location of origin in the town of Barnstable and which may pass over the locally owned or controlled roadways of the town of Yarmouth; provided, however, that said vessel shall be trucked by a professional licensed boat hauler. For the purposes of this section, public ways shall not include roadways owned or within the control of the Massachusetts Department of Transportation.

SECTION 47. Notwithstanding any general or special law to the contrary, the special commission established in section 149 of chapter 135 of the acts of 2024 is hereby revived and continued to December 31, 2025. The special commission shall submit its report and recommendations pursuant to said section 149 of said chapter 135 with the clerks of the house of representatives and the senate not later than December 31, 2025.

SECTION 48. Notwithstanding any general or special law to the contrary, the special commission established in section 202 of chapter 140 of the acts of 2024 is hereby revived and continued to October 15, 2025. The special commission shall submit its report and

recommendations, if any, pursuant to said section 202 of said chapter 140 with the clerks of the house of representatives and the senate not later than October 15, 2025.

SECTION 49. Notwithstanding any general or special law to the contrary, the special commission established in section 127 of chapter 150 of the acts of 2024 is hereby revived and continued to December 31, 2025. The special commission shall submit its report and recommendations, if any, pursuant to said section 127 of said chapter 150 with the clerks of the house of representatives and the senate and the joint committee on housing not later than December 31, 2025.

SECTION 50. Notwithstanding any general or special law to the contrary, the special commission established in section 128 of chapter 150 of the acts of 2024 is hereby revived and continued to December 31, 2025. The special commission shall submit its recommendations pursuant to said section 128 of said chapter 150 with the clerks of the house of representatives and the senate and the joint committee on housing not later than December 31, 2025.

SECTION 51. Notwithstanding any general or special law to the contrary, the special commission established in section 36 of chapter 285 of the acts of 2024 is hereby revived and continued to March 30, 2026. The special commission shall submit its report and recommendations pursuant to said section 36 of said chapter 285 with the clerks of the house of representatives and the senate not later than March 30, 2026.

SECTION 52. Notwithstanding sections 185A to 185E, inclusive, of chapter 140 of the General Laws, as amended by sections 249 and 250 of chapter 238 of the acts of 2024, no person shall be required to be licensed to engage in the business of selling tickets or the business of

reselling or facilitating a mechanism for 2 or more parties to participate in the resale of any ticket of admission under said section 185A of said chapter 140 until January 1, 2026.

SECTION 53. Notwithstanding any general or special law to the contrary, the comptroller shall transfer all funds currently in the Commonwealth of Massachusetts, Inspector General Expendable Trust to the Office of the Inspector General Recovery Fund, established in section 2LLLLLL of chapter 29 of the General Laws, inserted by section 7, not later than 90 days from the effective date of this act.

SECTION 54. Notwithstanding any general or special law to the contrary, any unexpended balances, not to exceed a total of \$40,000,000, in items 4000-0700 and 4000-1426 of section 2 of chapter 140 of the acts of 2024 shall not revert to the General Fund until September 1, 2025 and may be expended by the executive office of health and human services to pay for services enumerated in said items 4000-0700 and 4000-1426 provided during fiscal year 2025.

SECTION 55. Notwithstanding any general or special law to the contrary, for fiscal year 2025, the secretary of health and human services, with the written approval of the secretary of administration and finance, may authorize transfers of surplus among items 4000-0320, 4000-0430, 4000-0500, 4000-0601, 4000-0641, 4000-0700, 4000-0875, 4000-0880, 4000-0885, 4000-0940, 4000-0950, 4000-0990, 4000-1400, 4000-1420 and 4000-1426.

SECTION 56. The salary adjustments and other economic benefits authorized by the following collective bargaining agreements shall be effective for the purposes of section 7 of chapter 150E of the General Laws:

498 (1) the agreement between the Sheriff of Bristol County and the National Correctional
499 Employees' Union, Local 103, K-9 Unit, Unit SA7, effective from July 1, 2024 through June 30,
500 2027;

501 (2) the agreement between the Board of Trustees of the University of Massachusetts and
502 Service Employees International Union, Local 888, Unit L95, effective from July 1, 2024
503 through June 30, 2027;

504 (3) the agreement between the Secretary of the Commonwealth and Service Employees
505 International Union, Local 888 AFL/CIO on behalf of certain employees of the Suffolk Registry
506 of Deeds, Unit SC2, effective from July 1, 2024 through June 30, 2027;

507 (4) the agreement between the Sheriff of Bristol County and the National Correctional
508 Employees' Union, Local 103 K-9 Unit, Unit SA7, effective from July 1, 2024 through June 30,
509 2027;

510 (5) the agreement between the Sheriff of Plymouth County and the New England Police
511 Benevolent Association (NEPBA), Local 580 (BCI), Unit SP3, effective from July 1, 2024
512 through June 30, 2027;

513 (6) the agreement between the Sheriff of Norfolk County and the National Association of
514 Government Employees, RI Local 202, Unit SN1, effective from July 1, 2024 through June 30,
515 2027;

516 (7) the agreement between the Sheriff of Norfolk County and the County Correctional
517 Officers Association, NEPBA Local 570, Unit SN3, effective from July 1, 2024 through June 30,
518 2027;

519 (8) the agreement between the Board of Higher Education and the Association of
520 Professional Administrators, MTA/NEA, Unit APA, effective from July 1, 2024 through June
521 30, 2027;

522 (9) the agreement between the Sheriff of Norfolk County and the County Correctional
523 Officers Association, NEPBA Local 575, Unit SN2, effective from July 1, 2024 through June 30,
524 2027;

525 (10) the agreement between the Sheriff of Hampshire County and the Hampshire
526 Sheriff's Office Treatment Association (SOTA), Unit SH6, effective from July 1, 2024 through
527 June 30, 2027;

528 (11) the agreement between the Sheriff of Hampshire County and the Hampshire Jail and
529 House of Correction Supervisory Correctional Officers, Unit SH8, effective from July 1, 2024
530 through June 30, 2027;

531 (12) the agreement between the Commonwealth of Massachusetts and the New England
532 Police Benevolent Association, Unit 4A, effective from July 1, 2024 through June 30, 2027;

533 (13) the agreement between the Sheriff of Barnstable County and NAGE-IBCO, Local
534 217, Unit S3B, effective from July 1, 2024 through June 30, 2027;

535 (14) the agreement between the University of Massachusetts and The American
536 Federation of State, County, and Municipal Employees, Council 93, Local 1776, AFL-CIO, Unit
537 A01, effective from July 1, 2024 through June 30, 2027;

538 (15) the agreement between the University of Massachusetts and the American
539 Federation of State and County and Municipal Employees, Local 507/Council 93, AFL-CIO,
540 Unit D82, effective from July 1, 2024 through June 30, 2027;

541 (16) the agreement between the University of Massachusetts and the New England Police
542 Benevolent Local 290, Unit B33, effective from July 1, 2024 through June 30, 2027;
543 (17) the agreement between the University of Massachusetts and the New England Police
544 Benevolent Local 285, Unit B3S, effective from July 1, 2024 through June 30, 2027;
545 (18) the agreement between the Sheriff of Hampshire County and the Non-Uniform
546 Correctional Association, Unit SH7, effective from July 1, 2024 through June 30, 2027;
547 (19) the agreement between the University of Massachusetts and the Massachusetts
548 Society of Professors, MTA/NEA, Unit A50, effective from July 1, 2024 through June 30, 2027;
549 (20) the agreement between the University of Massachusetts and the Faculty Staff Union,
550 Unit B40, effective from July 1, 2024 through June 30, 2027;
551 (21) the agreement between the Sheriff of Barnstable County and the National
552 Correctional Employees Union, Local 122, Unit S9B, effective from July 1, 2024 through June
553 30, 2027;
554 (22) the agreement between the Sheriff of Hampden County and the National
555 Correctional Employees Union, Local 131, Unit SH1, effective from July 1, 2024 through June
556 30, 2027;
557 (23) the agreement between the Sheriff of Barnstable County and NAGE-Administrative
558 Office Workers, Local 220, Unit S5B, effective from July 1, 2024 through June 30, 2027;
559 (24) the agreement between the Sheriff of Worcester County and the New England Police
560 Benevolent Association, Local 550, Unit SW6, effective from July 1, 2025 through June 30,
561 2028; and

562 (25) the agreement between the Sheriff of Middlesex County and the National
563 Correctional Employees Union, Local 116, Unit SM6, effective from July 1, 2024 through June
564 30, 2027.

565 SECTION 57. The department of elementary and secondary education and the board of
566 education shall update regulations, as necessary, consistent with sections 13 to 18, inclusive.